BEFORE THE
PUBLIC SERVICE COMMISSION
OF THE STATE OF ALABAMA

In the Matter of the Application of	**)**	
NEXTERA ENERGY PIPELINE	**)**	
HOLDINGS (LOWMAN), INC.	**)**	**Docket No. 32978**
	)	

LOWMAN PIPELINE'S NOTICE OF FILING OF AFFIDAVIT REGARDING NOTICE TO REASONABLY IDENTIFIABLE LANDOWNERS

Comes now NextEra Energy Pipeline Holdings (Lowman), Inc. ("Lowman Pipeline"), applicant in the above-styled matter, and respectfully submits the attached Affidavit of Blake Tyler Allen regarding the notice that Lowman Pipeline provided to reasonably identifiable landowners in satisfaction of Ala. Code § 37-2-4.1 ("the notice statute"). Lowman Pipeline further states:

1. Alabama law clearly states the specific notice requirement applicable to Lowman Pipeline's application for a Certificate of Public Convenience and Necessity. That requirement is:

> Any utility or telephone company that is required to obtain a certificate of convenience and necessity … from the Alabama Public Service Commission for the construction or operation of any facility must give notice of the filing of such application with said commission to the **reasonably identifiable owners of all lands which are proposed to be acquired for such construction or operation** for which the certificate of convenience and necessity is sought; except, that such notice requirement shall not apply to the acquisition of lands or interest in lands for utility or telephone transmission or distribution lines or to the purchase, lease or other acquisition of an existing utility or telephone system. **Such notice must be given in writing, and proof of service thereof must be filed with and become a part of the record of such certificate proceedings before the commission.** All such landowners shall be entitled to be heard and to participate in such certificate proceedings.

Ala. Code § 37-2-4.1 (emphases added).

2. On its face the notice statute requires "proof of service" of the required notice.

Service by mail or certified mail is authorized under Alabama law, and "[s]ervice authorized by mail is completed upon mailing, not upon receipt." *Harrison v. State Dep't of Indus. Relations*, 42 So. 3d 132, 135 (Ala. Civ. App. 2010); *accord, e.g.*, *Elliott v. Bd. of Equalization & Adjustment of Jefferson Cty.*, 469 So. 2d 602, 604 (Ala. Civ. App. 1984) ("the general rule is that, where service of notice is authorized by statute, the date that the notice is properly addressed, registered, and mailed controls rather than the date on which the letter is received"); Ala. R. Civ. P. 5 ("service by mail is complete upon mailing").

3. The rule that service of notice may be by mail or certified mail appears in numerous areas of Alabama law. *See, e.g.*, Ala. R. Civ. P. 4 (service of process by certified mail in civil actions, including provision for service by regular mail when certified mail is refused); Ala. R. Civ. P. 5 (pertaining to service by mail); Ala. R. App. P. 25 (filing may be accomplished by certified or registered mail, and document is deemed filed on the day of mailing); *J.R. Watkins Co. v. Hill*, 108 So. 244, 245 (1926) (mailbox rule for acceptance of contracts by correspondence: "When a contract is made or unqualified proposal accepted by the letter of the promisor, it is complete and takes effect the moment the same is deposited and duly posted in the post office."); Ala. Code § 12-16-82 (failure to obey summons for jury duty, which may be sent by mail, is cause for finding of contempt); Ala. R. App. P. 4(c) (stating Alabama's prisoner mailbox rule).

4. Accordingly, Lowman Pipeline completed legally sufficient notice on the date that it sent certified mail letters to all reasonably identifiable landowners at the addresses that those landowners have provided to governmental authorities.

5. Additionally, on its face the notice statute requires "proof of service," not "proof of delivery" or "proof of receipt" of notice. *See* Ala. Code § 37-2-4.1. Accordingly, any requirement that Lowman Pipeline prove that each certified-mail notice was delivered to or received by each addressee would be without basis in the notice statute, and therefore beyond the jurisdiction of the

PSC to impose. In this respect, Alabama's notice statute is similar to the federal notice regulations applicable to interstate natural gas pipeline projects. *See* 18 C.F.R. §157.6(d) (requiring service, not receipt; and allowing service by certified mail).

6. Separately, those few landowners whose certified mail notices were returned are no longer "reasonably identifiable" to Lowman Pipeline under the notice statute. As the attached affidavit testifies, the notices were mailed to the addresses that those landowners provided to governmental authorities in connection with their ownership interest in the land. The landowner, not Lowman Pipeline, is responsible for the landowner's failure to receive notice if the landowner's address has changed and the landowner has failed to notify the authorities, or the landowner refuses to accept certified mail at the address the landowner has provided.

7. In any event, those few landowners whose certified mail notices were returned had additional written notice from general circulation newspapers in their area. As Lowman Pipeline established at the Commission's December 12, 2019 hearing related to Lowman Pipeline's application, the Commission published notice of the hearing on November 13, 2019, and Lowman Pipeline published six legal notices in the *Choctaw Sun Advocate* and *Washington County News* between November 20, 2019 and December 6, 2019.

8. For each and all of the foregoing reasons, Lowman Pipeline respectfully submits that it has complied with the requirement set forth in Alabama's notice statute.

Respectfully submitted, this 20th day of December, 2019.

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One of the Attorneys for
NextEra Energy Pipeline Holdings (Lowman), Inc.

CERTIFICATE OF SERVICE

I hereby certify that I will, on December 20, 2019, serve a copy of the foregoing upon the following:

Mr. Walter L. Thomas, Secretary – via hand delivery
Alabama Public Service Commission
100 North Union Street
Montgomery, Alabama 36130-4260

Hon. John A. Garner – via hand delivery
Alabama Public Service Commission
100 North Union Street
Montgomery, Alabama 36130-4260

Zack Wilson – via e-mail
Tina C. Hammonds – vial e-mail
Office of the Attorney General
Consumer Interest Division
501 Washington Avenue
Montgomery, Alabama 36130
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Tina.Hammonds@AlabamaAG.gov

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T. Michael Bowen
Of Counsel

BEFORE THE
PUBLIC SERVICE COMMISSION
OF THE STATE OF ALABAMA

In the Matter of the Application of	)	
NEXTERA ENERGY PIPELINE	)	
HOLDINGS (LOWMAN), INC.	)	**Docket No. 32978**
	)	

Before me, the undersigned authority in and for said county and state, personally appeared Blake Tyler Allen, who deposes and says as follows:

1. My name is Blake Tyler Allen. I am over nineteen (19) years old. I am competent to give this affidavit and I have personal knowledge of the facts set forth herein.

2. I am the Project Manager for Energy Access Solutions ("EAS"), which was engaged by NextEra Energy Pipeline Holdings (Lowman), Inc. ("Lowman Pipeline") to provide various services in connection with the development of the Lowman Pipeline Project in Alabama.

3. Those services include identifying and communicating with landowners along the route of the proposed pipeline.

4. On November 25, 2019, I and other EAS personnel working with me sent a letter via certified U.S. mail to landowners whose land would be traversed by the proposed pipeline according to the centerline alignment as of November 15, 2019. The letter included the Commission's notice of hearing dated November 13, 2019.

5. A true and correct copy of that letter is attached to this affidavit as Exhibit A.

6. The landowners to whom the letter was sent were identified using GIS data provided through the Alabama Department of Revenue's website.

7. This data was cross-checked with data from the Choctaw County Tax Assessor and Washington County Tax Assessor.

8. The data that we obtained from these governmental authorities included the mailing address that each landowner had provided to those authorities.

9. I and my colleagues at EAS then removed duplicate landowners from the list generated by the process described above (some landowners have interests in multiple properties along the route of the proposed pipeline).

10. I and my colleagues at EAS then populated a certified mail slip with the information required for shipping by the United States Postal Service for each landowner on the list.

11. I and my colleagues at EAS then attempted to mail the letters on November 22, 2019. The Post Office asked us to return the following Monday to send the letters because they would require additional staff to process such a large quantity of certified mail.

12. In total, I and my colleagues at EAS sent 243 certified mail letters to landowners. As of December 19, 2019, the website of the United States Postal Service reports the following status for those 243 letters: 179 have been delivered (with the return receipt received by EAS); 23 have been delivered (with the return receipt not yet received by EAS); 11 remain in transit; and 30 have not been delivered. True and correct copies of the certified mail return receipts that have been received by EAS are attached as Exhibit B.

FURTHER AFFIANT SAYETH NOT.

Blake Tyler Allen

STATE OF TEXAS)
COUNTY OF BRAZOS)

I, the undersigned, a notary public in and for said county in said state, hereby certify that Blake Tyler Allen, whose name is signed to the foregoing instrument, and who is known to me, acknowledged before me on this day that, being informed of the contents of said instrument, the facts stated therein are true to the best of his knowledge and belief.

Given under my hand and official seal this 20th day of December 2019.



Notary Public

[NOTARIAL SEAL]

My commission expires: 6/23/2022

Exhibit A

LOWMAN
Pipeline

700 Universe Blvd. JB/E1W
Juno Beach, FL 33408

November __, 2019

Adressee First Name Last Name
Address
City, State and Zip Code

Re: Application of NextEra Energy Pipeline Holdings (Lowman), Inc
Docket No. 32978

Dear Sir/Madam:

The purpose of this letter is provide notice to you that on October 31, 2019, NextEra Energy Pipeline Holdings (Lowman), Inc. ("Lowman Pipeline") has filed an application with the Alabama Public Service Commission to own, construct and operate an approximately 51-mile, 16-inch diameter natural gas pipeline in Choctaw and Washington Counties, Alabama. The Lowman Pipeline project is in its early stages and the pipeline route is being developed to minimize impacts to the community and environment.

You are being sent this letter because the currently proposed pipeline route that is being studied may directly affect your property. Lowman Pipeline land representatives have been notifying affected landowners via personal contact since early November and you may have already been contacted in connection with granting permission for Lowman to conduct certain surveys on your property. Pursuant to Alabama law, Lowman is publishing the attached notice of application in the Choctaw Sun Advocate and the Washington County News. In accordance with Alabama law, Lowman is also providing this same notice of application to each directly affected landowner. More information about the project, including a map of the proposed pipeline, can be found at the following URL: http://www.lowmanpipeline.com.

If you have any questions regarding this notice, please contact the undersigned.

Sincerely,



Kyle Martin, Project Manager

Notice of Public Hearing

NextEra Energy Pipeline Holdings (Lowman), Inc.

Petitioner

Docket 32978

APPLICATION: FOR APPROVAL OF A CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY TO CONSTRUCT, OWN, AND OPERATE AN INTRASTATE NATURAL GAS PIPELINE

NextEra Energy Pipeline Holdings (Lowman), Inc. will present its petition to the Alabama Public Service Commission for a Certificate of Public Convenience and Necessity to construct, own, and operate an intrastate natural gas pipeline pursuant to Ala. Code § 37-2-4. The proposed project includes approximately 51 miles of 16 inch diameter pipeline, extending from near Butler in Choctaw County, Alabama to the Lowman Energy Center near Leroy in Washington County, Alabama. The natural gas will be used to generate electricity. More information, including a map of the proposed pipeline, can be found at the following URL: http://www.lowmanpipeline.com.

A public hearing on the above-styled matter is scheduled for Thursday, December 12, at 10:00 a.m. in the Carl L. Evans Chief Administrative Law Judge Hearing Complex, RSA Union Building, 100 North Union Street, Room 900, Montgomery, Alabama. For general inquires relating to the application, please contact Robert E. Poundstone IV, Bradley Arant Boult Cummings, LLP; 445 Dexter Avenue, Suite 9075, Montgomery, Alabama 36104; (334) 956-7645. For general inquires related to the public hearing, please contact Walter L. Thomas, Jr., Commission Secretary, Public Service Commission; RSA Union Building, 100 North Union Street, Room 850, Montgomery Alabama 36104; (334) 242-5218.

Exhibit B

Certified Mail Return Receipts
Filed Confidentially with the PSC
To Protect Confidential Landowner Information